

		Attorney will be relieved as counsel of record for client <u>effective upon filing of a Proof of Service of the Court's signed order on client.</u> Moving attorney is to give notice.
3	L. vs West Coast Fertility Centers, LLC 2023-01341735	Motion for Leave to File First Amended Cross-Complaint Defendant/Cross-Complainant SR Bray dba PowerPlus's (PowerPlus) Motion for Leave to File a First Amended Cross-Complaint is GRANTED. PowerPlus moves for an order for leave to file their First Amended Cross-Complaint (FACC). PowerPlus seeks to add Vitaly A. Kushnir, M.D. (Kushnir) as a cross-defendant and add Cross-Defendants West Coast Fertility Centers, LLC (West Coast Fertility) and West Coast Medical Group, PC (West Coast Medical) (collectively, "Responding Parties") to the first cause of action for express indemnity and the fourth cause of action for breach of contract. "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading[.]" <i>Code of Civil Procedure</i> sections 473(a)(1), 576 ["Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading."]. Policy favors liberally granting leave to amend so that all disputed matters between the parties may be resolved. <i>Howard v. County of San Diego</i> (2010) 184 Cal.App.4th 1422, 1428; <i>Mesler v. Bragg Mgmt. Co.</i> (1985) 39 Cal.3d 290, 296 ["There is a strong policy in favor of liberal allowances of amendments."] Denial is rarely justified. <i>Morgan v. Superior Court</i> (1959) 172 Cal.App.2d 527, 530.) However, denial is appropriate if the party seeking the amendment has been dilatory and the delay has prejudiced the opposing party. <i>Hirsa v. Superior Court</i> (1981) 118 Cal.App.3d 486, 490; <i>Magpali v. Farmers Group, Inc.</i> (1996) 48 Cal.App.4th 471, 486-488 [denial proper where leave sought on eve

	of trial when a jury was about to be impaneled, without explanation for nearly two-year delay, and the only way to avoid prejudice to the opposing party was to continue trial to allow further discovery to defend against the new allegations]. A motion for leave to amend must state with particularity what allegations are to be amended. Namely, it must state what allegations in the previous pleading are proposed to be deleted and/or added, if any, and where, by page, paragraph, and line number. <i>California Rules of Court</i>, Rule 3.1324(a)(2)-(3). The motion must be accompanied by a declaration specifying: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. <i>CRC</i>, Rule 3.1324(b). The motion must also be accompanied by the proposed amended pleading, numbered to differentiate it from the prior pleadings or amendments. <i>CRC</i>, Rule 3.1324(a)(1). It is within the court's discretion to require compliance with Rule 3.1324 before granting leave to amend. <i>Hataishi v. First American Home Buyers Protection Corp.</i> (2014) 223 Cal.App.4th 1454, 1469. Here, PowerPlus' motion substantially complies with the procedural requirements. PowerPlus' motion includes an Index of Changes that identifies the proposed additions and deletions from the cross-complaint, by page, paragraph, and line number. (Mot. p. 4.) PowerPlus also attached a proposed FACC. (Lagas Decl., ¶ 6, Ex. B.) PowerPlus sufficiently explains the effect of the amendment and why it is necessary: PowerPlus explains the amendment will properly identify itself as SR Bray dba PowerPlus rather than Power Plus LLC and will add claims and necessary parties after learning Kushnir signed the service contracts at issue with PowerPlus. (Lagas Decl., ¶ 5, 10, 11.) With respect to the facts giving rise to the amendment, PowerPlus explains it learned the facts giving rise to the amendment during the course of written discovery between 2/5/24 and 5/30/24 after receiving Cross-Defendants' various discovery responses that confirmed Kushnir signed the contractual documents at issue in the cross-complaint. (Lagas Decl. ¶¶ 10-12, Ex. C.) PowerPlus further explains it was a mistake for its prior handling attorney to dismiss the fourth cause of action for breach of contract against West Coast
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	Fertility and West Coast Medical in January 2024 at a time when pertinent facts as to the contract at issue in the cross-complaint were not known; namely, no discovery had been completed at that time as to any of the Defendants, their contractual relationships, and/or the person that had executed various contractual documents issued by PowerPlus to Healthcare Realty Trust, Inc. After receiving West Coast Fertility and West Coast Medical discovery responses on 5/30/24, PowerPlus’ current attorney sent a meet and confer email on 6/5/24, to cross-defendants’ attorney regarding amending the cross-complaint. (Lagas Decl. ¶¶ 8, 13-15, Ex. D.) PowerPlus contends it was a reasonable mistake for the prior handling attorney to agree to dismiss these entities at a time when it was unbeknown and/or not appreciated that their owner, Kushnir, had signed the contractual documents at issue in the case and the motion is brought within six months of the dismissal without prejudice. (Lagas Decl., ¶ 13.) Responding Parties argue leave to amend should be denied because the proposed amendments fail to state a claim. PowerPlus responds the proposed FACC sufficiently alleges all essential facts to support the cause of action for express indemnity and breach of contract and Responding Parties’ attempt to adjudicate disputed issues of material facts is procedurally inappropriate. PowerPlus is correct. Courts generally do not consider the validity of proposed amendments to a pleading on a motion for leave to amend. <i>Kittredge Sports Co. v. Superior Court</i> (1989) 213 Cal.App.3d 1045, 1048; <i>California Casualty General Insurance Co. v. Superior Court</i> (1985) 173 Cal.App.3d 274, 281 [“[T]he preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings.”]; <i>Atkinson v. Elk Corp.</i> (2006) 109 Cal.App.4th 739, 760 [explaining that even assuming the party opposing amendment is correct that the proposed amendment would be legally insufficient to state a claim, the “better course of action” is to allow amendment “and then let the parties test its legal sufficiency in other appropriate proceedings.”]. Responding Parties argue the motion should be denied due to undue delay because emails show PowerPlus has had all the facts concerning Kushnir’s execution of the contractual documents at issue since August 2022. Namely, the served and signed proposals came directly from West Coast staff and several Power Plus managers were included in these emails. Further, the proposals clearly indicate Kushnir as the signee. PowerPlus has explained the delay as a
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		mistake made by its prior handling attorney who dismissed the West Coast cross-defendants from the breach of contract claim early in the litigation before discovery had been completed without knowing and/or appreciating that their owner, Kushnir, had signed the contractual documents at issue. As PowerPlus correctly asserts, under 473(b) standards, this constitutes excusable neglect on the part of PowerPlus' attorney. Upon receiving discovery responses in May 2024, PowerPlus' current handling attorney sought to meet and confer with Responding Parties about amending the cross-complaint on 6/5/24 and then filed the instant motion on 6/27/24, less than six months after dismissing the breach of contract cause of action. Accordingly, PowerPlus has sufficiently explained the delay and acted diligently to correct the error. Lastly, Responding Parties have not established undue prejudice from the delay. Responding Parties argue the delay unduly and proposed amendments are unduly prejudicial because they will result in additional written discovery, subpoenas, document requests/review, depositions, expanded expert review and motions practice, including demurrer, motion for summary judgment, and potential discovery motions, all of which would extend the trial timeline, increase litigation costs, and alter defense strategies. However, PowerPlus acted diligently upon learning of the need to amend and since no trial date has been set, no delay of trial will result from the amendment. Responding Parties concern that Kushnir has already been deposed and Power Plus may ask for his deposition again is misplaced because PowerPlus concedes that another deposition in relation to this motion is not indicated since his deposition included inquiry into numerous contractual documents that he executed with PowerPlus. Further, the Discovery Act sets various limits on depositions of individuals. Kushnir can avail himself of those protections if PowerPlus seeks an unwarranted and/or impermissible additional deposition. Accordingly, Responding Parties have not established prejudice. The motion is GRANTED. Moving party is ordered to file and serve its First Amended Cross-complaint within ten (10) days. Moving party to give notice.
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4	Bennett vs General Motors, LLC 2023-01366979	Demurrer to First Amended Complaint and Motion to Strike Portions of Complaint Defendant General Motors LLC’s Demurrer to the Fifth Cause of Action to Plaintiff’s First Amended Complaint and Motion to Strike Punitive Damages are CONTINUED to January 27, 2025, at 1:45 p.m in Department C15. Defendant failed to meet and confer in good faith prior to filing the motions. Defendant is to file a declaration no later than 5 court days before the continued hearing date indicating it has met and conferred with Plaintiff in accordance with <i>Code of Civil Procedure</i> §§ 430.41 and 435.5, and state whether/which any of the issues raised in the demurrer and motion have been resolved; and if not, why not. Moving party to give notice. Case Management Conference On the Court’s own motion, the Case Management Conference is continued to January 27, 2025, at 1:45 PM in Department C15. Defendant to give notice.